

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sara Griffin	Team: Squad #5	CCRB Case #: 201800354	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Friday, 11/18/2016 10:49 AM	Location of Incident: Woodhaven Boulevard and 101st Avenue	Precinct: 102	18 Mo. SOL 5/18/2018	EO SOL 5/18/2018	
Date/Time CV Reported Sat, 01/13/2018 9:35 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 01/13/2018 9:35 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Brett Strauss	07360	943848	102 PCT
2. POM Michael Bohan	21009	958318	102 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Brett Strauss	Off. Language: Police Officer Brett Strauss made remarks to § 87(2)(b) based upon race.	
B.POM Brett Strauss	Discourtesy: Police Officer Brett Strauss acted discourteously toward § 87(2)(b)	
§ 87(4-b), § 87(2)(g)		

Case Summary

On January 13, 2018, § 87(2)(b) filed the following complaint with the CCRB via the Call Processing System. On November 18, 2016, at approximately 10:49 AM, § 87(2)(b) was pulled over by Police Officer Brett Strauss and Police Officer Michael Bohan of the 102nd Precinct on Woodhaven Boulevard in Queens. PO Strauss allegedly stated, “What? You people don’t speak English?” (**Allegation A: Offensive Language,** § 87(2)(g) PO Strauss allegedly threw § 87(2)(b) s documentation and four summonses onto § 87(2)(b) s lap (**Allegation B: Discourtesy,** § 87(2)(g) § 87(4-b), § 87(2)(g)

There is no video evidence in this case.

Findings and Recommendations

Allegation A- Offensive Language: Police Officer Brett Strauss made remarks to § 87(2)(b) based upon race.

It is undisputed that PO Strauss and PO Bohan attempted to pull over § 87(2)(b) after allegedly witnessing several vehicle and traffic infractions. It is undisputed that § 87(2)(b) did not comply and pull over immediately. Once § 87(2)(b) pulled over, it is undisputed that PO Strauss approached the driver’s side and PO Bohan approached the passenger’s side. § 87(2)(g)

§ 87(2)(b) s testimony (Board Review 1) is as follows. PO Strauss stated, “Didn’t you see me trying to pull you over?” § 87(2)(b) replied, “Officer, I had no idea what was going on. I saw the sirens and I saw everybody move over. I did not know what was going on. PO Strauss requested § 87(2)(b) s license and registration. § 87(2)(b) stated, “Officer, I don’t know what’s going on. What happened? Why are you pulling me over?” PO Strauss stated, “What? You people don’t understand English?” § 87(2)(b) replied, “Excuse me?” § 87(2)(b) interpreted PO Strauss’s comment to be offensive towards his Hispanic ethnicity.

PO Strauss’s testimony (Board Review 2) is as follows. PO Strauss requested § 87(2)(b) s documentation and informed him of the infraction he had committed. § 87(2)(b) replied that he was lost and did not know the officers were pulling him over. § 87(2)(b) provided his documentation. PO Strauss did not recall there being any language barrier between him and § 87(2)(b) PO Strauss denied saying, “What? You people don’t understand English?” PO Strauss denied making any comment in regards to § 87(2)(b) s ethnicity.

PO Bohan’s testimony (Board Review 3) is as follows. PO Bohan believed PO Strauss requested § 87(2)(b) s documentation. Other than a few words, PO Bohan was unable to hear the conversation between PO Strauss and § 87(2)(b) PO Bohan did not remember if there was any language barrier between PO Strauss and § 87(2)(b) PO Bohan did not remember hearing PO Strauss say, “What? You people don’t understand English?”

§ 87(2)(g)

Allegation B- Discourtesy: Police Officer Brett Strauss acted discourteously toward § 87(2)(b)

It is undisputed that after obtaining documentation, PO Strauss wrote and issued four summonses to § 87(2)(b) § 87(2)(g)

§ 87(2)(b)'s testimony (Board Review 1) is as follows. Approximately 15 to 20 minutes after obtaining § 87(2)(b)'s documentation, PO Strauss returned to § 87(2)(b)'s vehicle. PO Strauss threw § 87(2)(b)'s documentation along with four summonses on to § 87(2)(b)'s lap. PO Strauss turned around and returned to his vehicle. PO Strauss did not attempt to hand the summonses to § 87(2)(b). PO Strauss did not make any statements to § 87(2)(b) while issuing the summonses.

PO Strauss's testimony (Board Review 2) is as follows. After writing the four summonses, PO Strauss and PO Bohan both approached § 87(2)(b)'s vehicle on the driver's side. PO Strauss stated that normally he hands the summonses to the driver and informs them of the instructions on the back, but did not recall the specifics of his interaction with § 87(2)(b). PO Strauss denied throwing the summonses and stated normally if a civilian refuses to take a summons he would place the summons on the dashboard. PO Strauss did not make a note on the back of the summons in regards to § 87(2)(b) not accepting the summonses.

PO Bohan's testimony (Board Review 3) is as follows. PO Bohan and PO Strauss both approached § 87(2)(b)'s vehicle on the driver's side. PO Bohan did not recall the conversation between § 87(2)(b) and PO Strauss. PO Bohan did not remember seeing PO Strauss throw the summonses or there be any difficulty in the handing off of the summonses. PO § 87(2)(b) [sic] did not recall if § 87(2)(b) refused to accept the summonses.

§ 87(2)(g)

§ 87(4-b), § 87(2)(g)

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (Board Review 6).
- PO Strauss has been a member of the NYPD for 11 years, and is the subject of nine previous complaints, involving 21 allegations. None of the allegations has been substantiated. § 87(2)(g)
- PO Bohan has been a member of the NYPD for two years, and this is his first CCRB complaint (Board Review 8).

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation, as he did not want to meet with the officers.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of February 14, 2018, § 87(2)(b) has not filed a notice of claim with the New York City Comptroller's Office.

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date